



Bill Number: S.C.R. 1023

Mesnard Floor Amendment

Reference to: printed resolution

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Requires the Fair and Independent Redistricting Commission to approve the final congressional and state legislative district boundaries with six or more affirmative votes.

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO S.C.R. 1023
(Reference to printed resolution)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Title

3 This constitutional amendment shall be known as the "Fair And
4 Independent Redistricting (F.A.I.R.) Commission Act of 2026".

5 2. Article IV, part 2, section 1, Constitution of Arizona, is
6 proposed to be amended as follows if approved by the voters and on
7 proclamation of the Governor:

8 1. Senate; house of representatives; members; special
9 session on petition of members; congressional and
10 legislative boundaries; citizen commissions

11 Section 1. ~~(1)~~ A. The senate shall be composed of one
12 member elected from each of the thirty legislative districts
13 established pursuant to this section.

14 B. The house of representatives shall be composed of
15 two members elected from each of the thirty legislative
16 districts established pursuant to this section.

17 ~~(2)~~ C. ~~Upon~~ ON the presentation to the governor of a
18 petition bearing the signatures of not less than two-thirds of
19 the members of each house, requesting a special session of
20 the legislature and designating the date of convening, the
21 governor shall promptly call a special session to assemble on
22 the date specified. At a special session so called the
23 subjects which may be considered by the legislature shall not
24 be limited.

25 ~~(3)~~ D. By ~~February 28~~ MARCH 15 of each year that ends
26 in one, ~~an~~ THE FAIR AND independent redistricting commission
27 shall be established to provide for the redistricting of
28 congressional and state legislative districts. The FAIR AND
29 independent redistricting commission shall consist of ~~five~~

1 NINE members. ~~No~~ NOT more than ~~two~~ THREE members of the FAIR
2 AND independent redistricting commission shall be members of
3 the same political party. ~~Of the first four members~~
4 ~~appointed, no more than two~~ FOUR OF THE COMMISSIONERS shall
5 reside in the ~~same~~ MOST POPULOUS county, TWO OF THE
6 COMMISSIONERS SHALL RESIDE IN THE SECOND MOST POPULOUS COUNTY,
7 TWO OF THE COMMISSIONERS SHALL RESIDE IN DIFFERENT COUNTIES OF
8 THE REMAINING COUNTIES AND THE FINAL MEMBER MAY RESIDE IN ANY
9 COUNTY. Each member shall be a registered Arizona voter who
10 has been continuously registered with the same political party
11 or registered as unaffiliated with a political party for three
12 or more years immediately preceding appointment, ~~AND~~ who is
13 committed to applying ~~the provisions of~~ this section in an
14 honest, independent and impartial fashion and to upholding
15 public confidence in the integrity of the redistricting
16 process. Within the three years previous to appointment,
17 members shall not have been appointed to, elected to, or a
18 candidate for any other public office, including precinct
19 committeeman or committeewoman but not including school board
20 member or officer, and shall not have served as an officer of
21 a political party, or served as a registered paid lobbyist or
22 as an officer of a candidate's campaign committee.

23 ~~(4)~~ E. The commission on appellate court appointments
24 shall nominate candidates for appointment to the FAIR AND
25 independent redistricting commission, except that, if a
26 politically balanced commission exists whose members are
27 nominated by the commission on appellate court appointments
28 and whose regular duties relate to the elective process, the
29 commission on appellate court appointments may delegate to
30 such existing commission (hereinafter called the commission on
31 appellate court appointments' designee) the duty of nominating
32 members for the FAIR AND independent redistricting
33 commission, ~~and~~ and all other duties assigned to the commission
34 on appellate court appointments in this section.

35 ~~(5)~~ F. By January 8 of years ending in one, the
36 commission on appellate court appointments or its designee
37 shall establish a pool of persons who are willing to serve on
38 and are qualified for appointment to the FAIR AND independent
39 redistricting commission. The pool of candidates shall
40 consist of ~~twenty-five~~ THIRTY nominees, with ten nominees from
41 each of the two largest political parties in Arizona based on
42 party registration, and ~~five~~ TEN NOMINEES who are not
43 registered with either of the two largest political parties in
44 Arizona.

1 ~~(6)~~ G. Appointments to the FAIR AND independent
2 redistricting commission shall be made in the order set forth
3 below. No later than January 31 of years ending in one, the
4 highest ranking officer elected by the Arizona house of
5 representatives shall make one appointment to the FAIR AND
6 independent redistricting commission from the pool of
7 nominees, followed by one appointment from the pool made in
8 turn by each of the following: the minority party leader of
9 the Arizona house of representatives, the highest ranking
10 officer elected by the Arizona senate, and the minority party
11 leader of the Arizona senate. FOLLOWING THESE APPOINTMENTS,
12 THE HIGHEST RANKING OFFICER ELECTED BY THE ARIZONA SENATE AND
13 THE HIGHEST RANKING OFFICER OF THE ARIZONA HOUSE OF
14 REPRESENTATIVES WHO IS A MEMBER OF THE SAME PARTY SHALL MAKE
15 ONE APPOINTMENT JOINTLY AND THE MINORITY PARTY LEADER OF THE
16 ARIZONA SENATE AND THE HIGHEST RANKING OFFICER OF THE ARIZONA
17 HOUSE OF REPRESENTATIVES WHO IS A MEMBER OF THE SAME PARTY
18 SHALL MAKE ONE APPOINTMENT JOINTLY. Each such official shall
19 have a seven-day period in which to make an appointment. EACH
20 MEMBER APPOINTED MUST BE A MEMBER OF THE SAME POLITICAL PARTY
21 AS THE PERSON WHO APPOINTS THE MEMBER. Any official who fails
22 to make an appointment within the specified time period will
23 forfeit the appointment privilege. ~~in the event that~~ IF there
24 are two or more minority parties within the house or the
25 senate, the leader of the largest minority party by statewide
26 party registration shall make the appointment.

27 ~~(7)~~ H. Any vacancy in the above ~~four~~ SIX FAIR AND
28 independent redistricting commission positions remaining as of
29 March ~~1~~ 15 of a year ending in one shall be filled from the
30 pool of nominees by the commission on appellate court
31 appointments or its designee. The appointing body shall strive
32 for political balance and fairness.

33 ~~(8)~~ I. At a meeting called by the secretary of state,
34 the ~~four~~ SIX FAIR AND independent redistricting commission
35 members shall select by majority vote from the nomination pool
36 ~~a fifth member~~ ESTABLISHED BY THE COMMISSION ON APPELLATE
37 COURT APPOINTMENTS THREE MEMBERS who shall not be registered
38 with any party already represented on the FAIR AND independent
39 redistricting commission and ~~who~~ shall DESIGNATE ONE OF THOSE
40 MEMBERS TO serve as chair. If the ~~four~~ SIX commissioners fail
41 to appoint ~~a fifth member~~ THE THREE MEMBERS within fifteen
42 days, the commission on appellate court appointments or its
43 designee, striving for political balance and fairness, shall
44 appoint ~~a fifth member~~ MEMBERS FOR ANY OF THE POSITIONS NOT

1 FILL BY THE SIX COMMISSIONERS INCLUDING DESIGNATING A CHAIR
2 from the nomination pool, ~~who shall serve as chair.~~

3 ~~(9)~~ J. The ~~five~~ NINE commissioners shall then select
4 by majority vote one of their members to serve as vice-chair.

5 ~~(10)~~ K. After having been served written notice and
6 provided with an opportunity for a response, a member of the
7 FAIR AND independent redistricting commission may be removed
8 by the governor, with the concurrence of two-thirds of the
9 senate, for substantial neglect of duty, gross misconduct in
10 office, or inability to discharge the duties of office.

11 ~~(11)~~ L. If a commissioner or chair does not complete
12 the term of office for any reason, the commission on appellate
13 court appointments or its designee shall nominate a pool of
14 three candidates within the first thirty days after the
15 vacancy occurs. The nominees shall be of the same political
16 party or status as was the member who vacated the office at
17 the time of ~~his or her~~ appointment, and the appointment other
18 than the chair OR OTHER COMMISSIONER APPOINTED PURSUANT TO
19 SUBSECTION I OF THIS SECTION shall be made by the current
20 holder of the office designated to make the original
21 appointment. The appointment of a new chair OR OTHER
22 COMMISSIONER APPOINTED PURSUANT TO SUBSECTION I OF THIS
23 SECTION shall be made by the remaining commissioners. If the
24 appointment of a replacement commissioner or chair is not made
25 within fourteen days following the presentation of the
26 nominees, the commission on appellate court appointments or
27 its designee shall make the appointment, striving for
28 political balance and fairness. The newly appointed
29 commissioner shall serve out the remainder of the original
30 term.

31 ~~(12)~~ M. ~~Three~~ FIVE commissioners, ~~including the chair~~
32 ~~or vice-chair,~~ constitute a quorum. ~~Three~~ FIVE or more
33 affirmative votes are required for any official action [EXCEPT
34 THAT A VOTE TO APPROVE FINAL DISTRICT BOUNDARIES REQUIRES SIX
35 OR MORE AFFIRMATIVE VOTES]. Where a quorum is present, the
36 FAIR AND independent redistricting commission shall conduct
37 business in meetings open to the public AND IN COMPLIANCE WITH
38 THE OPEN MEETING LAWS OF THIS STATE THAT ARE APPLICABLE TO
39 PUBLIC BODIES, EXCEPT with ~~48~~ FORTY-EIGHT or more hours public
40 notice provided.

41 ~~(13)~~ N. A commissioner, during the commissioner's term
42 of office and for three years thereafter, shall be ineligible
43 for Arizona public office or for registration as a paid
44 lobbyist.

1 ~~(14)~~ 0. The FAIR AND independent redistricting
2 commission shall establish congressional and legislative
3 districts. The commencement of the mapping process for both
4 the congressional and legislative districts shall be the
5 creation of districts of equal population in a grid-like
6 pattern across the state. Adjustments to the grid shall then
7 be made as necessary to accommodate the goals as set forth
8 below:

9 ~~A.~~ 1. Districts shall comply with the United States
10 Constitution and the United States voting rights act. ~~;~~

11 ~~B.~~ 2. Congressional districts shall have equal
12 population to the extent practicable, and state legislative
13 districts shall have equal population to the extent
14 practicable. ~~;~~ SO THAT THE POPULATION OF THE LARGEST
15 LEGISLATIVE DISTRICT BY POPULATION SHALL NOT EXCEED THE
16 POPULATION OF THE SMALLEST LEGISLATIVE DISTRICT BY POPULATION
17 BY MORE THAN FIVE THOUSAND PERSONS.

18 ~~C.~~ 3. Districts shall be geographically compact and
19 contiguous to the extent practicable. ~~;~~

20 ~~D.~~ 4. District boundaries shall respect communities of
21 interest to the extent practicable. ~~;~~

22 ~~E.~~ 5. To the extent practicable, district lines shall
23 use visible geographic features, city, town and county
24 boundaries, ~~;~~ and undivided census tracts. ~~;~~

25 ~~F.~~ 6. To the extent practicable, competitive districts
26 should be favored where to do so would create no significant
27 detriment to the other goals.

28 ~~(15)~~ P. Party registration and voting history data
29 shall be excluded from the initial phase of the mapping
30 process but may be used to test maps for compliance with the
31 above goals. The places of residence of incumbents or
32 candidates shall not be identified or considered.

33 ~~(16)~~ Q. The FAIR AND independent redistricting
34 commission shall advertise a draft map of congressional
35 districts and a draft map of legislative districts to the
36 public for comment, which comment shall be taken for at least
37 thirty days. Either or both bodies of the legislature may act
38 within this period to make recommendations to the FAIR AND
39 independent redistricting commission by memorial or by
40 minority report, which recommendations shall be considered by
41 the FAIR AND independent redistricting commission. The FAIR
42 AND independent redistricting commission shall then establish
43 final district boundaries.

44 ~~(17)~~ R. The provisions regarding this section are
45 self-executing. The FAIR AND independent redistricting

1 commission shall certify to the secretary of state the
2 establishment of congressional and legislative districts.

3 ~~(18)~~ S. ~~upon~~ ON approval of this amendment, the
4 department of administration or its successor shall make
5 adequate office space available for the FAIR AND independent
6 redistricting commission. The STATE treasurer ~~of the state~~
7 shall make \$6,000,000 available for the work of the FAIR AND
8 independent redistricting commission pursuant to the year 2000
9 census. Unused monies shall be returned to the ~~state's~~ STATE
10 general fund. In years ending in eight or nine after the year
11 2001, the department of administration or its successor shall
12 submit to the legislature a recommendation for an
13 appropriation for adequate redistricting expenses and shall
14 make available adequate office space for the operation of the
15 FAIR AND independent redistricting commission. The
16 legislature shall make the necessary appropriations by a
17 majority vote.

18 ~~(19)~~ T. The FAIR AND independent redistricting
19 commission, with fiscal oversight from the department of
20 administration or its successor, shall have procurement and
21 contracting authority and may hire staff and consultants for
22 the purposes of this section, including legal representation.

23 ~~(20)~~ U. The FAIR AND independent redistricting
24 commission shall have standing in legal actions regarding the
25 redistricting plan and the adequacy of resources provided for
26 the operation of the FAIR AND independent redistricting
27 commission. The FAIR AND independent redistricting commission
28 shall have sole authority to determine whether the Arizona
29 attorney general or counsel hired or selected by the FAIR AND
30 independent redistricting commission shall represent the
31 people of Arizona in the legal defense of a redistricting
32 plan.

33 ~~(21)~~ V. Members of the FAIR AND independent
34 redistricting commission are eligible for reimbursement of
35 expenses pursuant to law, and a member's residence is deemed
36 to be the member's post of duty for purposes of reimbursement
37 of expenses.

38 ~~(22)~~ W. Employees of the department of administration
39 or its successor shall not influence or attempt to influence
40 the district-mapping decisions of the FAIR AND independent
41 redistricting commission.

42 ~~(23)~~ X. Each commissioner's duties established by this
43 section expire ~~upon~~ ON the appointment of the first member of
44 the next FAIR AND INDEPENDENT redistricting commission. The
45 FAIR AND independent redistricting commission shall not meet

Senate Amendments to S.C.R. 1023

1 or incur expenses after the redistricting plan is completed,
2 except if litigation or any government approval of the plan is
3 pending, or to revise districts if required by court decisions
4 or if the number of congressional or legislative districts is
5 changed.

6 3. The Secretary of State shall submit this proposition to the
7 voters at the next general election as provided by article XXI,
8 Constitution of Arizona.

9 Enroll and engross to conform
10 Amend title to conform

J.D. MESNARD

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